

DISSENTING OPINION BY M. ANZILOTTI.

[*Translation.*]

I.—I regret that I am unable to concur in the opinion given by the Court.

In my view the question is not whether it is possible to find a valid ground for placing upon Article 3 of the Convention concerning the employment of women during the night an interpretation other than that which is consistent with the natural meaning of its terms; notwithstanding the fact that the Article is perfectly clear.

If Article 3, according to the natural meaning of its terms, were really perfectly clear, it would be hardly admissible to endeavour to find an interpretation other than that which flows from the natural meaning of its terms.

But I do not see how it is possible to say that an article of a convention is clear until the subject and aim of the convention have been ascertained, for the article only assumes its true import in this convention and in relation thereto. Only when it is known what the Contracting Parties intended to do and the aim they had in view is it possible to say either that the natural meaning of terms used in a particular article corresponds with the real intention of the Parties, or that the natural meaning of the terms used falls short of or goes further than such intention. In the first alternative it may rightly be said that the text is clear and that it is impossible, on the pretext of interpretation, to endow it with an import other than that which is consistent with the natural meaning of the words. In the other alternative, since the words have no value save as an expression of the intention of the Parties, it will be found either that the words have been used in a wider sense than normally attaches to them (broad interpretation) or that they have been used in a narrower sense than normally attaches to them (narrow interpretation).

The first question which arises therefore is what is the subject and aim of the convention in which occurs the article to be interpreted.

2.—The Convention of Washington concerning the employment of women during the night was concluded in accordance with Part XIII of the Treaty of Versailles and as a part of the programme which this Treaty assigns to the International Labour Organization.

In my view there can be no doubt that Part XIII of the Treaty of Versailles has for its object the regulation of the employment of manual workers (*ouvriers*). I am prepared to admit that the provisions of this Part do not *necessarily* restrict the competence of the International Labour Organization to manual workers (*ouvriers*) properly so-called and that it is open to that Organization also to concern itself with certain other categories of workers (*travailleurs*); but this latter task is a secondary and in a sense an incidental one, whereas the regulation of the conditions of employment of manual workers (*ouvriers*) is the essential and normal task of the Organization.

This follows, in the first place, from the historical connection between this Part of the Treaty of Versailles and the scientific and practical movement which, especially since the early years of the century, had prepared and already in part brought into being what was called "international labour legislation" (in French: "*droit international ouvrier*" or "*le droit international du travail*") and which, whatever name it was known by, was intended to make possible and to guarantee, by means of international agreements, certain measures for the protection of labour. Part XIII of the Treaty of Versailles takes up and carries on this movement under the new conditions resulting from the war: the basis adopted is much broader, since the Organization includes, at all events potentially, all States; the procedure is more effective since the Organization is permanent; but the subject and aim remain the same, viz. the protection of labour by the regulation of conditions of work.

There is nothing in Part XIII of the Treaty of Versailles—nor, if it is desired to refer to them, in the records of the preparatory work—to justify the idea that what was aimed at was no longer the protection of manual workers (*ouvriers*) but the protection of workers in general (*travailleurs*). On the contrary, notwithstanding the deficiencies

or inconsistencies of the terms used in one or other of the texts, Part XIII of the Treaty of Versailles clearly indicates that its object is the protection of labour, that what the High Contracting Parties agree jointly to carry out is the old programme of social reforms in the interest of the working class.

Thus, the Preamble of this Part of the Treaty of Versailles, in which is set out the programme of the Organization, after stating that "conditions of labour exist involving such injustice, hardship and privation to large numbers of people as to produce unrest so great that the peace and harmony of the world are imperilled" and that "an improvement of those conditions is urgently required", indicates the principal directions in which such improvements should be made, and mentions "the regulation of the hours of work, including the establishment of a maximum working day and week, the regulation of the labour supply, the prevention of unemployment, the provision of an adequate living wage, the protection of the worker against sickness, disease and injury arising out of his employment, the protection of children, young persons and women, provision for old age and injury, protection of the interests of workers when employed in countries other than their own, recognition of the principle of freedom of association, the organization of vocational and technical education and other measures". Clearly, these are the claims which the working class had long since raised and which are closely bound up with the conditions of manual work in modern industrial organization.

Similarly, the Preamble explains why these improvements must form the subject of an international understanding: "the failure of any nation to adopt humane conditions of labour is an obstacle in the way of other nations which desire to improve the conditions in their own countries". In point of fact, humanitarian efforts to bring about reforms in the domain of the protection of labour had hitherto encountered a very serious objection consisting in the impossibility of placing a national industry in a position of inferiority by imposing upon it burdens which foreign industry had not to bear. Part XIII of the Treaty of Versailles is designed to

remove this obstacle: accordingly it contemplates the regulation of conditions of work in industry, this word "industry" being construed in its wider sense and as covering agriculture as well as industry properly so-called (Opinion No. 2).

This idea, which emerges so clearly from the Preamble, also serves as the basis of the organization which is described in Chapter I of this Part of the Treaty of Versailles and which presupposes the existence of industrial organizations of employers and workers. It has never been questioned that the workers' industrial organizations are manual workers' organizations (*organisations ouvrières*) as opposed to employer's organizations. If this idea be not accepted, the whole of Part XIII of the Treaty of Versailles—whether sound or not—becomes incomprehensible; I do not see, for instance, how one could decide which organizations were most representative of the workers in a particular country, if account had to be taken of labour organizations other than manual labour organizations (*organisations ouvrières*).

Finally, it should be observed that Article 427 enunciates "general principles", i.e. "methods and principles for regulating labour conditions" which the High Contracting Parties agree to apply. After observing that "the well-being, physical, moral and intellectual, of industrial wage-earners is of supreme international importance", this Article declares that "there are methods and principles for regulating labour conditions which all industrial communities should endeavour to apply, so far as their special circumstances will permit"; which methods and principles, "if adopted by the industrial communities who are Members of the League will confer lasting benefits upon the wage-earners of the world". I have some difficulty in understanding how all this could have been written with anything else in mind except the labour conditions of manual workers.

As regards the "methods and principles" enunciated in the Article, perusal of them will suffice to show that their object is the introduction of certain measures of protection directly concerning manual workers (*ouvriers*), even though the possi-

bility of sometimes endowing such measures with a wider application is not excluded. It is worthy of note that the "guiding principle" referred to in the second paragraph of Article 427 and formulated under No. 1 is to the effect that "labour should not be regarded merely as a commodity or article of commerce".

3.—If the task allotted by Part XIII of the Treaty of Versailles to the Organization which it establishes is the regulation of conditions of manual labour, it is only natural to infer that any convention concluded under this Part is to be regarded as relating to manual labour and not to labour in general. Another and more general intention is conceivable but cannot be presumed: it must be proved.

It is in regard to this point more particularly that I disagree with the present opinion. The Court's view appears to be as follows: Article 3 of the Convention, taken by itself and considered separately, certainly applies to the women referred to in the question submitted to the Court; accordingly, to be able to construe it as not applying to women who hold positions of supervision or management, some valid ground for construing the Article otherwise than in accordance with the natural meaning of the words must be found. In my view, on the other hand, Article 3 should not be taken by itself and considered separately; it should be construed in relation to the Convention of which it forms part and which, by its nature, concerns the employment of women manual workers (*ouvrières*). Accordingly, it has merely to be considered whether, having regard to the terms used, this Article affords proof that the intention of the High Contracting Parties was to prohibit, not only the employment of women manual workers during the night, but in general the employment at night of women in industry.

This question I feel bound to answer in the negative. As I see it, the only argument that can be adduced in support of the interpretation that the Washington Convention applies to women in general and not only to women manual workers (*ouvrières*) is that that Convention, in Article 3, as also in other places, uses the expression "women" without adding

anything to indicate that women manual workers and not women in general are meant.

But this argument, which in itself is sufficiently weak, for it has no regard to the nature of the Convention in which the expression is used, loses all its force when we observe that this expression is used in documents relating to labour legislation to designate women industrial workers, just as the expressions children and young persons mean, not children and young persons in general, but those engaged in manual work (*travail d'ouvrier*). National legislation would furnish a large number of examples; but I will only mention the Preamble of Part XIII of the Treaty of Versailles and Article 427, No. 6, of that Treaty, as also the Convention of Berne of 1906 concerning the prohibition of night work for women employed in industry, where the same general expression is used repeatedly to indicate women manual workers (*ouvrières*). I find it difficult to believe that the delegates at the Washington Conference, who must have been more or less familiar with the texts in question, should have used an expression which, to say the least, is ambiguous, if they really intended to extend the prohibition to all women.

4.—For these reasons, I am of opinion that a correct interpretation of Article 3 of the Convention of Washington leads to the conclusion that that Convention applies exclusively to women manual workers.

If however any doubt were possible, it would be necessary to refer to the preparatory work, which, in such case, would be adduced not to extend or limit the scope of a text clear in itself, but to verify the existence of an intention not necessarily emerging from the text but likewise not necessarily excluded by that text.

Now the preparatory work shows most convincingly that the intention of the Washington Conference was to maintain—whilst for technical reasons adopting a new convention—the main lines of the Berne Convention, save for a certain number of clearly indicated modifications none of which relate to the

question before us. And since the Berne Convention, according both to its actual terms and to the universally adopted interpretation thereof, refers only to women manual workers, it follows that the intention of the Conference was to regulate the night employment of women manual workers. Thus the preparatory work would, if need be, confirm the interpretation which, in my view, naturally flows from the text of the Convention.

5.—This being so, it only remains for me to add that the answer to the question put to the Court should, in my view, have been based on investigations in two directions. On the one hand, it should have sought to obtain as accurate as possible a definition of the category of workers (manual workers: *ouvriers*) referred to in Part XIII of the Treaty of Versailles; a category which is far from being clear and definite. On the other hand, it should have investigated the nature of the duties of supervision or management referred to in the request, in order to establish whether and, if so, in what circumstances, women who are engaged in these duties can be included in the category of workers in question.

(Signed) D. ANZILOTTI.